

Guidelines for Residential Swimming Pools, Spas and Hot Tubs

The following is an excerpt from Section R326 of the current State Building Code

Section R326 General. The provisions of this section shall control the design and

construction of swimming pools, spas and hot tubs installed in or on the lot of a one- or two

family dwelling.

Section R326.6.1 Outdoor swimming pool. An outdoor swimming pool, including in-ground,

aboveground or on-ground pool, hot tub and spa shall be surrounded by a barrier that shall

comply with the following:

1. The top of the barrier shall be at least 48 inches above grade measured on the side of the barrier, which faces away from the swimming pool. The maximum vertical clearance

between grade and the bottom of the barrier shall be 2 inches measured on the side of the

barrier that faces away from the swimming pool. Where the top of the pool structure is

above grade, such as an above-ground pool, the barrier may be at ground level, such as the

pool structure, or mounted on top of the pool structure. Where the barrier is mounted on top

of the pool structure, the maximum vertical clearance between the top of the pool structure

and the bottom of the barrier shall be 4 inches.

2. Openings in the barrier shall not allow passage of a 4-inch diameter sphere.

3. Solid barriers that do not have openings, such as masonry or stone walls, shall not contain

indentations or protrusions except for normal construction tolerances and tooled masonry joints.

4. Where the barrier is composed of horizontal and vertical members and the distance

between the tops of the horizontal members is less than 45 inches, the horizontal members

shall be located on the swimming pool side of the fence. Spacing between vertical members

shall not exceed 1 3/4 inches in width. Where there are decorative cutouts within vertical

members, spacing within the cutouts shall not exceed 1 3/4 inches in width.

5. Where the barrier is composed of horizontal and vertical members and the distance

between the tops of the horizontal members is 45 inches or more, spacing between vertical

members shall not exceed 4 inches. Where there are decorative cutouts within vertical

members, spacing within the cutouts shall not exceed 1 3/4 inches in width.

6. Maximum mesh size for chain link fences shall be 2 1/4 square unless the fence has slats fastened at the top or the bottom, which reduce the openings to not more than 1 3/4 inches.

7. Where the barrier is composed of diagonal members, such as a lattice fence, the maximum opening formed by the diagonal members shall not be more than 1 3/4 inches.

8. Access gates shall comply with the requirements of items 1 through 7, and shall be

equipped to accommodate a locking device. Pedestrian access gates shall open outward

away from the pool and shall be self-closing and have a self-latching device. Gates other

than pedestrian access gates shall have a self-latching device. Where the release

mechanism of the self-latching device is located less than 54 inches from the bottom of the

gate, the release mechanism and openings shall comply with the following:

8.1. The release mechanism shall be located on the pool side of the gate at least 3

inches below the top of the gate; and

8.2. The gate and barrier shall have no opening larger than 1/2 inch within 18 inches

of the release mechanism.

9. Where a wall of a dwelling serves as part of the barrier, one of the following conditions shall

be met:

9.1. The pool shall be equipped with a powered safety cover in compliance with

ASTM F 1346;

9.2. Doors with direct access to the pool through that wall shall be equipped with an

alarm which produces an audible warning when the door and/or its screen, if present,

are opened. The alarm shall be listed and labeled in accordance with UL 2017. The

deactivation switch(es) shall be located 54 inches above the threshold of the door; or

9.3. Other means of protection, such as self-closing doors with self-latching devices,

which are approved by the governing body, shall be acceptable as long as the degree

of protection afforded is not less than the protection afforded by Item 9.1 of 9.2

described herein.

10. Where an above-ground pool structure is used as a barrier or where the barrier is

mounted on top of the pool structure and the means of access is a ladder or steps, then the

ladder or steps shall be surrounded by a barrier which meets the requirements of section

R326.6.1, Items 1 through 9.

R326.6.2 Indoor swimming pool. Walls surrounding an indoor swimming pool shall comply

with Section R326.6.1, Item 9.

R326.6.3 Barrier perimeter clearance. The required barrier height shall exist around the

entire perimeter of the barrier and for a distance of three (3) ft.

measured horizontally from the

outside of the required barrier, free of structures, equipment or similar objects.

R326.6.4 Barrier exceptions. Spas or hot tubs with a safety cover which complies with ASTM

F 1346, shall be exempt from the provisions of this chapter.

R326.6.5 Temporary enclosure. A temporary enclosure shall be installed prior to the

electrical bonding inspection of any in-ground swimming pool unless the permanent barrier

specified in Section R326.6.1 is in place prior to the commencement of the installation. The

temporary enclosure shall be a minimum of 4 feet in height, shall have no openings that will

allow passage of a 4-inch sphere and shall be equipped with a positive latching device on any

openings.

R326.6.6 Pool alarm. Pursuant to section 29-265a of the Connecticut General Statutes, no

building permit shall be issued for the construction or substantial alteration of a swimming pool

at a residence occupied by, or being built for, one or more families unless a pool alarm is

installed with the swimming pool. As used in this section, "pool alarm" means a device that

emits a sound of at least 50 decibels when a person or an object weighing 15 pounds or more

enters the water in a swimming pool.

Exception: Hot tubs and portable spas shall be exempt from this requirement.